

# 26CV01847 County of Santa Barbara vs Lexington National Insurance Corp

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-03

Motion: Motion: Set Aside

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Case Number

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Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/03/2026 - 10:00

Nature of Proceedings

Motion: Set Aside

Tentative Ruling

County of Santa Barbara v. Lexington National Insurance Corp.

Case No. 26CV01847

Hearing Date: August 3, 2026

HEARING: Motion of Bail Agent Superior Bail Bonds to Set Aside Summary Judgment on Bond Forfeiture

ATTORNEYS: For Plaintiff County of Santa Barbara: Rachel Van Mullem, Kristen M. Cortez, Office of the County Counsel

For Defendant Lexington National Insurance Corp. and Bail Agent Superior Bail Bonds: Daniel Moaddel

TENTATIVE RULING: The motion of bail agent Superior Bail Bonds to set aside summary judgment on bond forfeiture is denied.

Background:

This action pertains to the forfeiture of Bail Bond No. 2023DD010349 (Bail Bond) in favor of plaintiff County of Santa Barbara (County) related to the failure to appear by Nautica Singleton (Singleton), defendant in the underlying criminal matter, People of the State of California v. Nautica Singleton, Santa Barbara Superior Court, Case No. 23CR08667 (Criminal Case).

As indicated by the filings in this action and those attached to the motion:

On October 22 and October 27, 2023, respectively, Superior Bail Bonds (SBB) as bail agent of Lexington National Insurance Corp. (Lexington) issued and filed the Bail Bond in the Criminal Case. (Sum. Judg. on Bail Bond Forfeiture, March 20, 2026, attach.) The Bail Bond states that Singleton was ordered to appear in the Criminal Case on December 22, 2023, pertaining to charges against Singleton under Penal Code section 182 [conspiracy], Penal Code section 459 [burglary], and Penal Code section 475 [forgery], and Penal Code section 529 [false personation]. (Ibid.) The charges against Singleton are referenced with the suffix “—F” and appear to be described in the Bail Bond as felony charges. (Ibid.)

On June 6, 2024, Singleton did not appear at a scheduled court hearing (June 6 Hearing) in the Criminal Matter, but was represented by a public defender at that June 6 Hearing. (Motion, Ex. A.) The court’s minutes in the Criminal Case refer to seven misdemeanor charges and two felony charges. (Ibid.) The court continued this hearing and the Bail Bond obligations to July 25, 2024. (Ibid.) The court’s minutes noted that “good cause [was] found to continue.” (Ibid.)

On January 15, 2025, Singleton failed to appear at a subsequent court hearing (January 15 Hearing) in the Criminal Case, a bench warrant was ordered, and the Bail Bond was forfeited as of January 15, 2025. (Sum. Judg. on Bail Bond Forfeiture, March 20, 2026, attach; Motion, Exs. B-C.)

On January 17, 2025, a notice of forfeiture of surety bond was issued in the Criminal Case as to the Bail Bond. (Sum. Judg. on Bail Bond Forfeiture, March 20, 2026, attach; see also, Motion, Ex. B.) The notice states in part, “[y]ou are hereby notified that the surety bond posted by you on behalf of the above-named defendant has been ordered forfeited by the Court for failure to appear on [January 15, 2025].” (Sum. Judg. on Bail Bond Forfeiture, March 20, 2026, attach; Motion, Ex. B.)

According to the County, the 180-day appearance period, extended by five days for mailed notice, expired on July 21, 2025, and no motion to vacate forfeiture or request for extension was filed in the Criminal Case by SBB or Lexington. (Opp., p. 3, ll. 3-7.)

On February 17, 2026, a bail bond demand letter was issued in the Criminal Case. (Sum. Judg. on Bail Bond Forfeiture, March 20, 2026, attach; see also, Motion, Ex. C.) The demand letter states in part, “[t]his is to advise you that the forfeiture for the bond specified below was not aside within the 180-day, plus 5-days for mailing, period set forth in Penal Code [section] 1305. Your contractual promise to pay has become absolute.” (Sum. Judg. on Bail Bond Forfeiture, March 20, 2026, attach; Motion, Ex. C.)

On March 20, 2026, in this action, the court entered summary judgment on Bail Bond forfeiture (Judgment) in favor of the County and against Lexington in the amount of \$50,000 plus interest and costs. (Sum. Judg. on Bail Bond Forfeiture, March 20, 2026; Motion, Ex. C.) The Judgment provided that Lexington issued the Bail Bond, Singleton failed to appear at the January 15 Hearing, the Bail Bond was forfeited pursuant to Penal Code sections 1305 or 1306, and that this forfeiture was not set aside within the period allowed by Penal Code section 1305. (Ibid.) Therefore, “pursuant to Penal Code [section]

1306, it [was] ordered and adjudged that the County ... recover from [Lexington] the sum of \$50,000.00 together with the interest ... plus costs ... pursuant to Government Code [section] 1603.5.” (Ibid.)

On April 9, 2026, SBB filed this motion to set aside the Judgment pursuant to Code of Civil Procedure section 473, subdivision (d). SBB argues that (1) the court failed to comply with Penal Code section 977, subdivision (b), regarding Singleton’s waiver of appearance, (2) the court failed to make sufficient findings of good cause for Singleton’s non-appearance at the June 6 Hearing, (3) the court lost jurisdiction when it failed to properly declare forfeiture in accordance with Penal Code section 1305, and (4) the public defender failed to state or file a proper waiver under Penal Code section 977, subdivision (b), pertaining to Singleton’s absence at the June 6 Hearing. (Motion, p. 2, ll. 6-17.) According to SBB, these failures rendered the Judgment void for lack of jurisdiction. SBB’s motion is supported by several exhibits attached to the motion including Exhibit A, June 6, 2024 court minutes, Exhibit B, notice of forfeiture, and Exhibit C, application, application for summary judgment, and notice of entry of summary judgment. (Motion, Exs. A-C.) No declaration or request for judicial notice was filed in support of SBB’s motion. (See *ibid.*) The County opposes this motion and argues that the court retained jurisdiction to enter the Judgment.

Analysis:

#### (1) Statutory Framework

“When a defendant released on bail fails to appear as required, the trial court must declare a forfeiture of the bail bond in open court. [Citation.] Within 30 days of the forfeiture, a notice of forfeiture is served by the court clerk. If the amount of the bond exceeds \$400, the notice of forfeiture must be served by mail on the surety. [Citation.] Thereafter, the surety has a 180-day period, plus five days for service by mail (i.e., 185 days), within which to obtain relief from the forfeiture on certain statutory grounds ... including that the criminal defendant has appeared in court or has been surrendered into custody by the bail agent within the 185-day period. [Citations.] This 185–day period is commonly known as the exoneration period or the appearance period....” (*People v. United States Fire Ins. Co.* (2015) 242 Cal.App.4th 991, 999–1000 (US Fire).)

“Under section 1306, subdivision (a), when ‘the period of time specified in Section 1305 has elapsed without the forfeiture having been set aside, the court which has declared the forfeiture shall enter a summary judgment’ against the surety in the amount of the forfeited bail bond plus costs. Section 1306, subdivision (c), sets forth the 90–day time frame within which the summary judgment must be entered: ‘If, because of the failure of any court to promptly perform the duties enjoined upon it pursuant to this section, summary judgment is not entered within 90 days after the date upon which it may first be entered, the right to do so expires and the bail is exonerated.’ ” (*US Fire*, *supra*, 242 Cal.App.4th at p. 1000.)

#### (2) Declaration of Forfeiture Under Penal Code Section 1305

“A court shall in open court declare forfeited the undertaking of bail or the money or property deposited as bail if, without sufficient excuse, a defendant fails to appear for any of the following: [¶] (A) Arraignment. [¶] (B) Trial. [¶] (C) Judgment. [¶] (D) Any other occasion prior to the pronouncement of judgment if the defendant’s presence in court is lawfully required. [¶] (E) To surrender himself or herself in execution of the judgment after appeal.” (Pen. Code, § 1305, subd. (a)(1).) “Whenever a defendant fails to appear in court on one of the occasions enumerated in section 1305, the court must declare a forfeiture, unless ‘the court has reason to believe that sufficient excuse may exist for the failure to appear.’ ” (*People v. Indiana Lumbermens Mutual Ins. Co.* (2011) 194 Cal.App.4th 45, 48–49 (*Indiana Lumbermens*).)

#### (3) Continuance of Bail Obligations Under Penal Code Section 1305.1

“If the defendant fails to appear for arraignment, trial, judgment, or upon any other occasion when his or her appearance is lawfully required, but the court has reason to believe that sufficient excuse may exist for the failure to appear, the court may continue the case for a period it deems reasonable to enable the defendant to appear without ordering a forfeiture of bail or issuing a bench warrant. [¶] If, after the court has made the order, the defendant, without sufficient excuse, fails to appear on or before the continuance date set by the court, the bail shall be forfeited and a warrant for the defendant’s arrest may be

ordered issued.” (Pen. Code, § 1305.1.) “If the court has reason to believe that a sufficient excuse may exist, it may continue the case for a reasonable period to enable the defendant to appear without ordering forfeiture of the bond. [Citation.] If the court has no information that a sufficient excuse may exist so as to justify a continuance pursuant to section 1305.1, the court must declare a forfeiture.” (Indiana Lumbermens, supra, 194 Cal.App.4th at p. 49.)

“In most situations involving a section 1305, subdivision (b) [now section 1305.1] determination[,] the only reasons before the trial court are the evidence or representations furnished by defendant’s counsel. The cases demonstrate that the courts have cooperated with defense counsels’ requests and have liberally relied on their representations.” [Citation.] [¶] By way of example, sufficient excuse has been found where defense counsel represented that defendant’s mother was dying of cancer [citation]; in a situation where ‘there may be an emergency [defendant] attended to, and he may be ... available tomorrow morning’ [citation]; where defense counsel’s ‘client had told him that he had gone to Stockton for medical treatment due to severe internal bleeding’ [citation]; and where defense counsel stated, ‘[T]here’s a possibility [defendant] might be in the San Francisco area’ because ‘[t]here’s also another action pending in San Francisco’ [citation]. Even vague representations by counsel have been found sufficient—i.e., where a defendant had never previously failed to appear and defense counsel was ‘concerned something has happened.’ ” (People v. Bankers Ins. Co. (2021) 69 Cal.App.5th 473, 479–480 (Bankers), internal quotation marks omitted.) However, “[t]he factual basis for the sufficient excuse finding must appear somewhere in the trial court record—in the minutes or in the reporter’s transcript.” (Id. at p. 478.)

However, “[b]y its terms, the [statute] all[ow]s the court to continue the hearing without declaring a forfeiture if it ‘has reason to believe that sufficient excuse [m]ay exist for his neglect to appear . . . .’ It does [n]ot require the court to make an immediate determination as to whether sufficient excuse exists. This specific authorization to continue the hearing reflects a vital change from the pre-existing law .... By conspicuously deleting from subdivision (b) the express provisions retained in subdivision (a) to the effect that ‘the court shall direct the fact (of failure to appear) to be entered upon its minutes, . . .’ the Legislature intended the very simple alternative of a reasonable continuance without any specific minute order. Since the court is thus specificall[y]-authorized by the amendment to postpone its decision, it certainly retains jurisdiction to declare a forfeiture at a later time.” (People v. Surety Ins. Co. (1976) 55 Cal.App.3d 197, 201.)

#### (4) Personal Appearance Under Penal Code Section 977

“Except as provided in subdivision (c), in all cases in which a felony is charged, the accused shall be physically present at the arraignment, at the time of plea, during the preliminary hearing, during those portions of the trial when evidence is taken before the trier of fact, and at the time of the imposition of sentence. The accused shall be physically or remotely present at all other proceedings unless they waive their right to be physically or remotely present, with leave of court and with approval by defendant’s counsel.” (Pen. Code, § 977, subd. (b)(1).) “[T]he felony defendant [must] be present at case-related proceedings that occur in open court.” (People v. Safety National Casualty Corp. (2016) 62 Cal.4th 703, 716 (Safety National).)

“The waiver of a defendant’s right to be physically or remotely present may be in writing and filed with the court or, with the court’s consent, may be entered personally by the defendant or by the defendant’s counsel of record. [¶] ... [¶] (B) A waiver of the defendant’s physical or remote presence may be entered by counsel, after counsel has stated on the record that the defendant has been advised of the right to be physically or remotely present for the hearing at issue, has waived that right, and agrees that notice to the attorney that the defendant’s physical or remote presence in court at a future date and time is required is notice to the defendant of that requirement.” (Pen. Code, § 977 subd. (b)(2).)

“In all cases in which the accused is charged with a misdemeanor only, they may appear by counsel only,” subject to certain exceptions for cases involving domestic violence or driving under the influence. (Pen. Code, § 977, subd. (a).)

“[C]onstrued together section 977(b)(1) and section 1305 ‘are not only compatible with the constitutional guarantee of due process, but also constitute an appropriate legislative design to assure the orderly administration of the judicial process.’ ” (Safety National, supra, 62 Cal.4th at pp. 715–716.)

#### (5) Strict Construction of Bail Statutes

“The law traditionally disfavors forfeitures and this disfavor extends to forfeiture of bail. Thus, Penal Code sections 1305 and 1306 dealing with forfeiture of bail bonds must be strictly construed in favor of the surety to avoid the harsh results of a forfeiture. [¶] The standard of review, therefore, compels us to protect the surety, and more importantly the individual citizens who pledge to the surety their property on behalf of persons seeking release from custody, in order to obtain the corporate bond. Sections 1305 and 1306 are said to be ‘jurisdictional prescriptions.’ Failure to follow the jurisdictional prescriptions in sections 1305 and 1306 renders a summary judgment on the bail bond void.” (People v. Ranger Ins. Co. (2003) 108 Cal.App.4th 945, 950–951.)

(6) Standard Under Code of Civil Procedure Section 473, Subdivision (d)

“The court may ... on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).) “‘A trial court has no statutory power under section 473, subdivision (d) to set aside a judgment that is not void.’ [Citation.]” (Lee v. An (2008) 168 Cal.App.4th 558, 563–564.) “Except as otherwise provided by law, a party has the burden of proof as to each fact the existence or nonexistence of which is essential to the claim for relief or defense that he is asserting.” (Evid. Code, § 500.) “While the provisions of Penal Code section 1305 ‘must be strictly followed or the court acts without or in excess of its jurisdiction’ ... ‘[t]he burden is upon the bonding company seeking to set aside the forfeiture to establish by competent evidence that its case falls within the four corners of these statutory requirements.’” (Safety National, 186 Cal.App.4th at p. 974.)

(7) SBB Did Not Carry Its Burden to Establish Non-Compliance with Penal Code Section 977 at the June 6 Hearing

“When a criminal defendant fails to appear at a required court appearance without sufficient excuse, the trial court is required to forfeit bail at that time.” (People v. American Surety Co. (2025) 112 Cal.App.5th 71, 73.) “When [a] defendant fail[s] to appear [at a required appearance] without excuse, the court [is] required to declare ‘in open court’ that the bond was forfeited. [Citation.]” (Id. at p. 77.) If the court does not do so, the court “no longer retain[s] ‘statutory control and jurisdiction over the bond’ [citation], which was exonerated by operation of law.” (Ibid.) “The court’s later entry of summary judgment on the bond is void, not merely voidable, and is subject to collateral attack at any time.” (Ibid.)

SBB argues that the court failed to create a sufficient record under Penal Code section 977 that Singleton waived her right to appear in person at the June 6 Hearing. As the court understands the arguments by SBB, because there was no proper waiver on the record at the June 6 Hearing or finding of sufficient excuse, the court was required to either forfeit the Bail Bond or exonerate the Bail Bond at the June 6 Hearing rather than continue the Bail Bond obligations to a later date. As argued by SBB, because the court took neither of those actions at the June 6 Hearing, the Bail Bond was exonerated by law, the court no longer had jurisdiction over the Bail Bond, and the Judgment resulting from Singleton’s failure to appear at the subsequent January 15 Hearing is void for lack of jurisdiction.

Assuming without deciding that a waiver of personal appearance was required at the June 6 Hearing under Penal Code section 977 and is a basis for voiding the Judgment, the court minutes submitted by SBB indicate that Singleton was represented by a counsel, a public defender, at the June 6 Hearing. (Motion, Ex. A.) A waiver of personal appearance in a felony hearing “may be entered by counsel, after counsel has stated on the record that the defendant has been advised of the right to be physically or remotely present for the hearing at issue, has waived that right, and agrees that notice to the attorney that the defendant’s physical or remote presence in court at a future date and time is required is notice to the defendant of that requirement.” (Pen. Code, § 977 subd. (b)(2)(B).)

Assuming *arguendo* its legal argument is valid and the charges were felonies, SBB has the burden to demonstrate that the discussion on the record at the June 6 Hearing by counsel was insufficient to comply with Penal Code section 977 as to any required waiver of personal appearance at a felony hearing. (Pen. Code, § 977 subd. (b)(2)(B); Code Civ. Proc., § 473, subd. (d); Evid. Code, § 500; Safety National, *supra*, 186 Cal.App.4th at p. 974.) “It is presumed that official duty [undertaken by the court] has been regularly performed.” (Evid. Code, § 664.) SBB does not submit evidence to establish what was discussed at the June 6 Hearing between counsel for Singleton and the court. (Motion, Exs. A-C.) SBB does not address the notation in the June 6 Hearing minutes that good cause was found to continue the Bail Bond obligations. (See Motion, Ex. A; Penal Code § 1305.1.)

(8) SBB Did Not Carry Its Burden to Establish Non-Compliance with Penal Code Sections 1305 and 1305.1 at the June 6 Hearing

Similarly, SBB does not establish that the court failed to make sufficient factual findings of good cause to continue the June 6 Hearing for sufficient excuse under Penal Code section 1305.1. "The factual basis for the sufficient excuse finding must appear somewhere in the trial court record—in the minutes or in the reporter's transcript." (Bankers, 69 Cal.App.5th at pp. 479–480, internal quotation marks omitted, italics added.) The court's minutes for the June 6 Hearing indicate that the court made a finding of good cause to continue the June 6 Hearing and Bail Bond obligations. (Motion, Ex. A.) The reporter's transcript was not submitted in support of SBB's motion. The presumption of regularity of the court's official duties applies under these circumstances. (Evid. Code, § 664.) SBB has the burden to demonstrate that the discussion at the June 6 Hearing was insufficient to comply with Penal Code sections 1305 and 1305.1, including any factual findings of good cause stated orally on the record. (Pen. Code, §§ 1305, 1305.1; Code Civ. Proc., § 473, subd. (d); Evid. Code, § 500; Safety National, supra, 186 Cal.App.4th at p. 974.) SBB did not meet its burden. The records submitted by SBB do not establish that the Judgment is void or that the court lacked jurisdiction to forfeit the Bail Bond at the subsequent January 15 Hearing.

(9) SBB Fails to Submit Competent Evidence to Support Its Arguments

The burden is on SBB to support its arguments "by competent evidence." (Safety National, 186 Cal.App.4th at p. 974.) "Evidence received at a law and motion hearing must be by declaration or request for judicial notice ... unless the court orders otherwise for good cause shown." (Cal. Rules of Court, rule 3.1306(a).) SBB does not submit evidence by declaration or request for judicial notice in support of its motion. And as discussed, even if the court were to consider the evidence as competent, the information presented by SBB fails to establish that (a) a proper appearance waiver at the June 6 Hearing did not occur on the record at the June 6 Hearing pursuant to Penal Code section 977 or (b) a proper basis for good cause to continue pursuant to Penal Code section 1305.1 was not stated on the record at the June 6 Hearing. There is no reporter's transcript for the court to review.

For all these reasons, the court finds that SBB failed to establish based on the arguments and evidence presented that the court lacked jurisdiction to enter the Judgment or that the Judgment is otherwise void. The court will deny SBB's motion to set aside the Judgment. (Code Civ. Proc., § 473, subd. (d); Evid. Code, § 500; Safety National, supra, 186 Cal.App.4th at p. 974.) The motion does not seek any other relief.

Judges

Judge Colleen Sterne

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